HH- 138-26

HCH-7096-25

COURTAULD TRUST

versus

MINISTER OF PUBLIC SERVICE, LABOUR AND SOCIAL WELFARE N.O

and

THE REGISTER OF DEEDS

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare 28 January, 11 & 12 February 2026

C. McGown, for the applicant

UNOPPOSED COURT APPLICATION

CHIRAWU-MUGOMBA J: This matter was placed before me on the unopposed motion roll. Upon perusal, I was *prima facie* not convinced with the propriety of the application and the order sought especially in view of the fact that none of the original trustees or those appointed to replace them were still alive. I removed the matter from the roll and directed that heads of argument be filed in support of the order sought framed as follows.

1. The following persons be and are hereby appointed as trustees to the Courtauld Trust:

   Robert Edward Anderson

   William Archibald Graham Black

   Jonathan Richard Waters

Muchadeyi Ashton Masunda

Evelyn Joan Uzelac

2. There shall be no order as to costs

The facts of the matter are as follows. The applicant was registered with the first respondent in the year 1969 under Registration Number 20/69. On the 10th of January 1964, a deed of donation and trust was executed in which Viginia Courtauld as the 'donor' established the applicant and gave and endowed it with the gift of 40 000 pounds for the establishment of a farm training centre. The donor amended the deed in 1965 and 1967. The original appointed trustees were Stephen Lewis Courtauld, Virginia Courtauld, Honourable Tom Ian Findlay Wilson, Jacqueline Wilson and Percy Gordon Deedes. One Brian Woodall Skene O'Connell was added as a trustee.

Various changes occurred including the death of Sir Stephen Courtauld and as at the date of the signing of the last notarial deed as at the 28th of October 1967, the trustees were the following- Phyllis Edith Gallagher as the authorised agent of Virginia Courtauld, Tom Ian Findlay Wilson, Jacqueline Wilson, Brian Woodall Skene O'Connell and John Winter Hodges. With the passage of time, trustees passed away and new ones were added. The last minutes of a meeting of the applicant that occurred in 1999 on the 17th of November 1999 indicate that the trustees were the following- R.R.J Putterill as the chair, R.E Park, A.LA. Pichanick. J.W Welsh and A.H.G Hampshire. All these persons have passed on. There is a dearth of information since the applicant has not been operating from that time. Since then a group of concerned people have come together with a view to resuscitating the applicant. They have all willing to be appointed as trustees. These are the names that appear in the draft order.

At the hearing, I posed the question as to whether the applicant and those that he represents have *locus standi* and the authority of this court to appoint trustees in the absence of a provision in the trust deed granting such authority. The following submissions were made. In *Trustee Mahommedan Mosque Sayed,* 1937 NPD, it was held that the court does have requisite jurisdiction to appoint trustees to hold certain property. In *Trustees of the Leonard Cheshire Homes Zimbabwe Limited vs. Chiite and*

ors, HH-267-10, the court considered the issue of the *locus standi* as except one of them, the trustees' term of office had expired or they had exceeded their terms. The court held that a trust does not fail due to absence of trustees. The court considered also the implications of the Companies and Associations Trustees Act, [Chapter *24:04*]. Further it was submitted that the cy-pres doctrine does not apply since the trust has not failed.

It is common cause that the trust deed for applicant did not envisage a situation where all trustees would have passed on. In my view, the questions or issues to be addressed are the following:

1. What happens to a trust set up through a trust deed when all trustees have passed away and the deed has no provision for successors?

2. Who should in such circumstances make an application for the revival of the trust and how should this be done?

Under South African law, when all trustees pass away and the trust deed is silent on succession, the trust itself does not die. The Trust Property Control Act 57 of 1988 deals with this scenario in s7(1) as follows:

> **7. Appointment of trustee and co-trustee by Master**
>
> (1)If the office of trustee cannot be filled or becomes vacant, the Master shall, in the absence of any provision in the trust instrument, after consultation with so many interested parties as he may deem necessary, appoint any person as trustee.(2)When the Master considers it desirable, he may, notwithstanding the provisions of the trust instrument, appoint as co-trustee of any serving trustee any person whom he deems fit.

Interested parties can be beneficiaries, executor of the last deceased's trustee's estate or even the state. South African law is also underpinned by the legal notion that trust assets do not form part of the deceased trustees personal estate- see *ESTATE Kemp vs MacDonald's Trustees* , 1915 AD 891.

While the section itself deals with the appointment through the Master, the High Court still retains inherent jurisdiction to appoint trustees.

I inquired from Mr McGown whether or not he is aware of the cy-pres doctrine. In the heads of argument, he submitted that this doctrine is not applicable to this case. The doctrine was described in ex parte Hart *1947 (4) SA 464 (W)* as follows.

> " It is settled law that a fund given or bequeathed for one charitable purpose may, on the accomplishment of failure of that purpose, be devoted, with the leave of the court, to an analogous purpose. *Marks v Estate Gluckman (1956 ad at p. 305). In English law, this is known as the cy-pres doctrine and in cases in our courts in which it has been sought to apply the above doctrine reference has been made to decisions in the English courts"*

Mr McGown also submitted that the Companies and Trustees Associations Act [Chapter *24:04*] does not apply. In terms of that act, an association is described as,

> In this Act—
> "association" includes any congregation, society or denomination, Christian or otherwise, united for the public worship of Almighty God, as also any missionary society or other agency engaged in promoting the spread of religion and civilization; and any school for the education of the poor, any hospital for the relief of the sick, any library and any museum, which school, hospital, library or museum is supported wholly or in part by subscriptions or donations, and is under the management of a committee or other board periodically chosen by the subscribers or donors; and includes any benefit society, masonic body or other institution, not carrying on any trade or business, and consisting of not fewer than twenty-five members;

In *casu,* no sufficient information has been placed before the court to determine whether or not the act applies . The major advantage of the act is that in section 7, the High Court is given the mandate to appoint trustees upon application in situations of death or other circumstances. This would have been the perfect act applicable had it been shown that the applicant falls within the definition of an association. The court may even regulate future appointments in terms of s8. This would work well for the applicant.

In Re Malilangwe Trust, SC-13-22, KUDYA JA, had occasion to deal with issues relating to trusts as follows,

> In our law, as espoused in *Crundall Bros (Pvt) Ltd v Lazarus NO & Anor* 1991(2) ZLR 125(S) at 128F, a "trust is not a person". It must be represented by a trustee or trustees, *nomine officii*. This position is affirmed in the *Veritas* case, *supra* para [20] and *Chiite & 7 Others v Trustees, Leonard Cheshire Homes Zimbabwe Central Trust* CCZ 10/17. These authorities and in particular the *Veritas* case, *supra*, also lay down the principle that the founding affidavit of a trust suing in its name must be deposed to by an authorized trustee and not by an employee of the trustee/s and not in the trade name of the trust to satisfy the requirement that it is the "trust" that is before the court. I am aware that this Court in the recent judgment of *Sharadkumah Patel & Anor v The Cosmo Trust & Ors* SC 165/21 at para [44] held that a trust has the legal capacity to sue in its own name or in the name of a trustee. That finding does not appear to affect the principle raised in the above cited cases that the founding affidavit of an application of such a trust must be deposed to by a trustee to render the application valid.

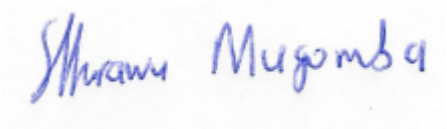
In *casu,* as has been shown, we have a peculiar situation in which the original trustees and all those that replaced them are deceased. Who then should apply for the appointment of new trustees? While I agree generally that the High Court retains the common law right to appoint trustees and that a trust does not die upon death of all the

trustees and there is no succession clause in the trust deed, in my view, the person or persons who petition the court must be interested persons. The applicant and those that seek appointment call themselves, 'nominal' trustees and they even state in the resolution of the 15th of January 2025 that it is one by the applicant. The question then becomes this? Who nominated them? Where are they coming from? What is their interest given the fact that the applicant has not been operational for a long time? The time period between the last minutes of the properly constituted board of trustees and the resolution is twenty-six years. All that has been presented are some curriculum vitaes with no link whatsoever to the applicant. No information has even been presented as to what is happening to the various activities. If one has regard to the minutes of the properly constituted board of trustees, it is apparent that applicant was involved in many activities. It seems that the deponent and those that appear in the draft order 'constituted' themselves from literally nowhere and have given the deponent 'powers' even to deal with the first respondent. That is not acceptable. They have no *locus standi* at all to act on behalf of the applicant.

DISPOSITION

I find no merit in the application on the basis that the deponent to the affidavit and those that he purports to represent have not shown that they are interested parties. They have no *locus standi*. On costs, it is trite that these are at the discretion of the court and as prayed for in the draft order, there shall be no order as to costs.

1. The application be and is hereby dismissed.
2. There shall be no order as to costs.



Warhurst Attorneys- Applicant's legal practitioners